

The Payment of Wages (Deductions for National Defence Fund and Defence Savings Schemes) Rules, 1963

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[THE-PAYMENT-OF-WAGES-DEDUCTIONS-FOR-NATIONAL-DEFENCE-FUND-AND-DEFENCE-SAVINGS-SCHEME S-RULES-1963 of 1963](#)

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[Published vide Noitfication S.O. 3376/PW A/ Section 7\(2\) \(ii\)/Rules, dated the 22nd November, 1963.](#)

[S.O. 3376/PW A/ Sec. 7\(2\) \(ii\)/Rules, dated the 22nd November, 1963. - In pursuance of clause \(ii\) of sub-section \(2\) of Sec. 7 and in exercise of the powers conferred by sub-section \(2\) and \(4\) of Sec. 26, read with Sec. 24 of the Payment of Wages Act, 1936 \(4 of 1936\), the Central Government hereby makes the following rules, the same having been previously published as required by sub-section \(5\) of the said Sec. 26, namely :-](#)

[1.](#)

Title, application and extent.

(1)

These rules may be called the Payment of Wages (Deductions for National Defence Fund and Defence Savings Schemes) Rules, 1963.

(2)

These rules shall apply persons employed on railways, mines and oilfields.

(3)

They extend to the whole of India except the State of Jammu and Kashmir.

2.

Definitions.

- In these rules,-

(a)

'Act' means the Payment of Wages Act, 1936;

(b)

'Section' means a section of the Act.

3.

Conditions for making deductions.

- The conditions for making deductions in pursuance of clause (ii) of sub-section (2) of Sec. 7 from the wages of the employed persons for contribution to the National Defence Fund or to any Defence Saving Scheme approved by the State Government with the written authorisation of the President or Secretary of the registered trade union of which the employed person is a member shall be as follows :-

(a)

the president or, in his absence, the Secretary of such trade union shall forward,-

(i)

in duplicate to the employer, a copy of the list of the employed persons who are member of the trade union indicating therein the amount or extent of deductions which are to be made from the wages of each employed person and also, where the deductions are to continue for more than one wage period, the total period during which such deductions are to be made, and a copy of the resolution adopted at a meeting of such trade union authorising such deductions; and

(ii)

a copy of the said list and resolution to the person who acts as an Inspector for the purposes of the Act;

(b)

the employer shall display in a conspicuous place of the establishment one of the two copies of the said list and resolution received from the president or secretary, as the case may be, of the trade union, for at least a period of three consecutive days immediately preceding the day on which the deductions are to be made from the wages of the employed persons; and

(c)

if an employed person objects in writing to deductions being made from his wages up to the amount or extent of deductions indicated in the list displayed by the employer, no deductions shall be made from his wages except in accordance with the written authorisation of such employed person.

4.

Repeal and savings.

- The notification No. S.O.3849/PWA/Sec.7 (2) (ii)/62, dated the 13th December, 1962, published in the Gazette of India, Part II, Sec. 3(ii), dated the 22nd December, 1962 is hereby rescinded but all acts done or purported to have been done under the said notification shall so far as they are not inconsistent with these rules, be deemed to have been done under these rules.

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